

KPB Metals Private Limited v. State of U.P. and Others

Allahabad High Court · Division Bench · 2 November 2022 · 2022 SCC OnLine All 940 · Writ - C No. 13176 of 2022 · **Writ petition dismissed**

HEADNOTE

Extending an existing sanctioned-load connection to newly-acquired adjoining plots is a 'change in site of the sanctioned load', barred by Clause 4.8(d)(i) of the U.P. Electricity Supply Code, 2005, and is not an internal 'change in wiring/apparatus/service line' within the same premises under Clause 4.45(c). Read with the definition of 'premises' in Clause 2.2(ss) - the area for which the connection has been applied for or sanctioned for a single consumer - the premises here was the single khasra (267M) for which the connection was sanctioned; the plots (265, 266) acquired later, after the sanction, did not become part of those premises merely by being contiguous. The Executive Engineer was justified in invoking Clause 4.8(d) to reject the request; the consumer's remedy is to apply for a fresh connection for the new premises or to seek disconnection and a fresh connection for the entire premises. Petition dismissed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.8

Extending a sanctioned connection to newly-acquired adjoining plots is a barred change of site, not an internal change within the premises

QUESTION

Can a consumer use an existing sanctioned-load connection for adjoining plots acquired after the sanction, as an internal change under Clause 4.45(c), or is that a change of site barred by Clause 4.8(d)(i)?

HOLDING

It is a change in the site of the sanctioned load, which Clause 4.8(d)(i) does not permit. Clause 4.45(c) applies only to changes in wiring/apparatus/service line within the premises for which the connection was accorded; 'premises' under Clause 2.2(ss) is the area (here khasra 267M) for which the connection was applied for/sanctioned for a single consumer. Plots 265 and 266, acquired after the sanction, did not become part of those premises merely by being contiguous, so Clause 4.45(c) was inapplicable and the Executive Engineer rightly invoked Clause 4.8(d) to reject the request. The consumer may apply afresh for the new premises, or seek disconnection and a fresh connection for the entire premises.

¶ 3-15

LIMITING FACTS

3000 KVA load sanctioned for khasra 267M; adjoining plots 265/266 acquired 25.1.2022, after the sanction; application to use the existing connection for the additional plots rejected under Clause 4.8(d).

PRINCIPLE TAGS

premises-is-area-for-which-connection-sanctioned-clause-2.2(ss) 'Premises' is the specific area/khasra for which a single consumer's connection was applied for or sanctioned; later-acquired contiguous plots are not part of it merely by adjacency.

¶ 9-13

change-of-site-of-sanctioned-load-not-permitted-4.8(d) Extending a sanctioned connection to a different/enlarged site is a change of site barred by Clause 4.8(d)(i), not an internal change under Clause 4.45(c); a fresh connection must be sought.

¶ 7-14